

1.

CASE #	CASE NAME	HEARING NAME
CVRI2403727	TOKAREV vs BMW OF NORTH AMERICA, LLC	MOTION TO TAX COSTS

Tentative Ruling:

Moving party: Plaintiff Danil Tokarev
Represented by: Knight Law Group LLP

Responding party: Defendant BMW North America, LLC
Represented by: Nelson Mullins Riley & Scarborough LLP

This is a lemon law case. On 6/28/24, Plaintiff Danil Tokarev filed a Complaint against Defendant BMW North America, LLC (BMW) for breach of express warranty in violation of the Song Beverly Consumer Warranty Act (SBA) regarding defects in a certified preowned 2018 BMW X1 that he purchased in March 2022.

A jury trial in this matter commenced on 4/23/26, and a verdict in BMW's favor was reached on 5/6/26. On 6/10/26, Judgment was entered by the Court.

On 6/29/26, BMW filed its Memorandum of Costs (MOC) seeking \$15,397.92 in costs.

Plaintiff now moves to tax \$13,567.82 in costs sought by BMW in its MOC. Plaintiff argues that the MOC does not include critical information to determine whether the costs were reasonable and recoverable.

BMW opposes and argues it is the prevailing party and is entitled to recover all costs and expenses. It states the verified MOC which constitutes prima facie evidence that the costs were necessarily incurred.

In reply, BMW argues the only costs recoverable are those costs specifically enumerated in CCP §1033.5(a) and not explicitly excluded under CCP §1033.5(b), as long as the claimed costs are "reasonable in amount" and "reasonably necessary to the conduct of litigation." (CCP §1033.5(c)(2)-(3).)

Analysis

I. Standard

Generally, a "prevailing party" is entitled to costs. (C.C.P., § 1032(b); *Santisas v. Goodin* (1998) 17 Cal.4th 599, 606.). A prevailing party includes a prevailing defendant in a Song-Beverly Act case. The California Supreme Court held that the Song-Beverly Act "provides no exception to the general rule set forth in section 1032(b) permitting a prevailing defendant to recover costs." (*Murillo v. Fleetwood Enters., Inc.* (1998) 17 Cal.4th 985, 911.)

“A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of mailing of the notice of entry of judgment... The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case.” (Cal. Rules of Court, rule 3.1700.)

The losing party may contest the costs that a prevailing party seeks. (C.C.P., § 1034(a).) The challenging party has the burden of demonstrating that those costs are unreasonable or unnecessary. (*Adams v. Ford Motor Co.* (2011) 199 Cal.App.4th 1475, 1486; 612; *South LLC v. Laconic Limited Partnership* (2010) 184 Cal.App.4th 1270, 1285.)

C.C.P. § 1033.5 sets forth the costs recoverable by the prevailing party. “Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation.” (C.C.P., § 1033.5(c)(2); *Perko's Enterprises, Inc. v. RRNS Enterprises* (1992) 4 Cal.App.4th 238, 244.) A “properly verified memorandum of costs is considered prima facie evidence that the costs listed in the memorandum were necessarily incurred.” (*Bach v. County of Butte* (1989) 215 Cal.App.3d 294, 308; see also *Hadley v. Krepel* (1985) 167 Cal.App.3d 677, 682.) This puts the burden on the party seeking to tax costs to show that they were not reasonable or necessary. (*Ladas v. California State Automotive Assoc.* (1993) 19 Cal.App.4th 761, 773-74.) If items are properly objected to, they are put in issue, and the burden of proof is on the party claiming them as costs. (*Id.*)

The memorandum of costs need not contain invoices, billings, or statements. (*Bach v. County of Butte* (1989) 215 Cal.App.3d 294, 308; see also Cal. Rules of Court, Rule 3.1700(a)(1) (only verification required).) “Documentation must be submitted only when a party dissatisfied with the costs claimed in the memorandum challenges them by filing a motion to tax costs.” (*Id.*)

II. Merits

Here, there is no dispute that BMW is the prevailing party and is entitled to recover its costs as a matter of right under C.C.P., § 1032(b). However, Plaintiff does challenge certain costs, discussed below:

Item No. 1. – Filing and motion fees

Filing and motion fees are expressly allowable costs under C.C.P. § 1033.5(a)(1). BMW seeks \$1,375.25 in costs, which are facially appropriate. Plaintiff only argues this request is unsubstantiated and unexplained. In opposition, BMW submits invoices from One Legal for filing fees and charges for attorney service totaling \$1,558.55. “Neither subdivision (a) or (b) [of Code of Civil Procedure section 1033.5] states whether attorney service charges for court filings and deliveries or mediators’ fees are allowable or not. Thus, these costs fall within the ‘discretionary category,’ subdivision (c)—that is, they are allowable if in the court’s discretion they were ‘reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation.’” (*Sanford v. Rasnick* (2016) 246 Cal.App.4th 1121, 1132.)

In reply Plaintiff does not challenge these as unreasonable. The Court denies the motion as to these costs.

Item 4 – Deposition costs

C.C.P., § 1033.5 permits the recovery of costs for the taking, video recording and transcribing of necessary depositions, including an original and one copy of those taken by the claimant and one copy of deposition taken by the party against whom the costs are allowed. (C.C.P., § 1033.5(a)(3)(A).) “The recovery of deposition costs does not depend on whether the deponent ultimately testifies at trial...The standard is whether the cost is ‘reasonably necessary to the conduct of the litigation.’” (*Chaaban v. Wet Seal, Inc.* (2012) 203 Cal.App.4th 49, 57.) The nature of the case dictates what discovery is reasonable and necessary. (*Culbertson v. R. D. Werner Co., Inc.* (1987) 190 Cal.App.3d 704, 711.)

BMW seeks \$7,463.80 in costs. Plaintiff argues BMW has failed to substantiate any of the depositions with itemized receipts or invoices. In opposition, BMW submits invoices for deposition of Plaintiff vol. 1 (\$2,584.30 + reprint for \$251.35); Plaintiff vol. 2 (\$1,773.10 + reprint of \$197.40); Plaintiff’s expert Thomas Lepper (\$1,878.20), and transcripts of Plaintiff’s depositions of BMW’s PMQ Mark Nicastro (\$623.20) and expert Travis Brown (\$605.00).

In reply, Plaintiff specifically requests the Court tax deposition add on charges within each of the three invoices for the depositions of Plaintiff and his expert for condensed transcripts (\$45), “intelligent summary +” (\$100), litigation support package (\$80), and “hard copy original prod and shipping” (\$50 for Lepper deposition only) plus \$700.10 in the re-prints for a total tax of \$1,425.10. While the re-prints sought in this item only total \$448.75, the request to tax the add on charges is well taken as these charges appear to have been for the convenience of counsel. The Court grants the motion to tax Item 4 in the total of \$1,173.93.

Item 13 – Models, enlargements, and photocopies of exhibits

C.C.P., § 1033.5(a)(13) provides that costs for “[m]odels, the enlargements of exhibits and photocopies of exhibits, and the electronic presentation of exhibits, including costs of rental equipment and electronic formatting, may be allowed if they were reasonably helpful to aid the trier of fact.”

BMW originally sought to recover \$1,752.94 for its models, enlargements, and photocopies of trial exhibits, but states it erroneously included the \$251.35 cost for its copy of Plaintiff’s deposition session 1 transcript in this figure. It requests only \$1,501.59 for its models, enlargements, and photocopies of trial exhibits, for which BMW submitted a supporting invoice. Counsel declares generally that these were reasonable and necessary for trial. Plaintiff argues in reply that the invoices reflect \$300 in charges for 5 flash drives which are exorbitant and not necessary. The Court finds no impropriety or unreasonableness in the invoices as to the flash drives. The Court grant the motion to tax Item 13 in the amount of \$251.35.

Item 15 – Other

Plaintiff argues it does not know what BMW seeks to recover in this Item. In opposition, BMW attaches invoices reflecting \$2,975.83 in costs for the court reporting service at trial and messenger service used for the transportation of documents, including exhibits. In reply, Plaintiff only challenges \$451.12 in messenger services used at trial. Counsel declares these were necessary for trial. The Court denies the request to tax.

Grant the motion to tax in part.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2405327	PEREZ vs TOYOTA MOTOR SALES U.S.A., INC.,	MOTION TO SET ASIDE DISMISSAL

Tentative Ruling:

A motion to set aside is generally governed by California Code of Civil Procedure §473(b). A motion to set aside under CCP §473(b) must be based on either: declarations or other evidence showing “mistake, inadvertence, surprise, or excusable neglect” (in which event, relief is discretionary), or an attorney affidavit of fault (in which event, relief is mandatory).

Requirements for Relief under the Discretionary Provision of CCP §473(b)

Mistake, Inadvertence, Surprise, or Excusable Neglect

CCP §473(b) grants the trial court discretion to vacate a default judgment (and/or any other step taken in a case, including dismissal, entry of default, or an order) on the basis of “mistake, inadvertence, surprise, or excusable neglect.” The moving party bears the burden of demonstrating by a preponderance of the evidence that at least one of these conditions is met. *Hopkins & Carley v. Gens* (2011) 200 CA4th 1401, 1410, 135 CR3d 1, 8–9; *Luz v. Lopes* (1960) 55 C2d 54, 62, 10 CR 161, 165–166.

a. Mistake

Mistake may be one of fact or law. Mistake of fact occurs when a person understands the facts to be other than they are; a mistake of law occurs when a person knows the facts as they really are, but has a mistaken belief as to the legal consequences of those facts. *People v. Kelly*, 35 Cal.App.2d 571, 574, 96 P.2d 372.

Under CCP §473(b), relief from default may be granted if the moving party demonstrates a material mistake of fact or law, regardless of whether the mistake was made by a party or by his or her attorney. However, because a lawyer has a duty to look up the law if he or she does not know it, an attorney’s mistake of law will be grounds for